

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 02/26/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02520
CASE NAME: ETIENNE VS. RICHMOND AMERICAN HOMES OF CALIFORNIA, INC.
*HEARING ON MOTION IN RE: VACATE DISMISSAL
FILED BY:
TENTATIVE RULING:

The July 23, 2025 dismissal is set aside for the reasons stated in the January 22, 2026 order. Defendants request for attorney fees is granted in part. Plaintiffs' counsel is ordered to pay Defendants \$2,014.00 within 30 days of this order.

Background

This is a construction defect action filed in 2022 by multiple homeowner plaintiffs against Richmond American Homes of California, Inc. and related entities. The case proceeded through 2024 and 2025 with the court setting a series of case management conferences (CMCs) and issuing orders concerning plaintiffs' appearances and prosecution of the action. Plaintiffs' counsel appeared at certain CMCs, at which subsequent hearing dates were set. During this period, the Court issued multiple notices and orders relating to CMCs and an Order to Show Cause (OSC) regarding dismissal for failure to prosecute.

Plaintiffs did not file CMC statements or appear at several subsequent hearings. On July 23, 2025, the court held an OSC re: dismissal for failure to appear at the CMC and failure to prosecute. Plaintiffs did not appear at that hearing. The court dismissed the action without prejudice on July 23, 2025 for Plaintiffs' "failure to appear and prosecute the case."

On August 14, 2025, Plaintiffs filed a motion to set aside the dismissal of this action pursuant to the mandatory and discretionary relief provisions of CCP section 473(b). The motion was accompanied by a declaration from plaintiffs' counsel, Saba Sheida, in which counsel admits that the dismissal was caused by his mistakes, inadvertence, and neglect.

On January 22, 2026, the Court granted mandatory relief under CCP section 473(b). The tentative ruling allowed Defendants to contest the tentative ruling to request the opportunity to submit a fee declaration, and they did so. The parties are now back before the Court on the fee request.

Attorney's Fees Under CCP § 473(b)

Where relief is granted under the mandatory provision of CCP section 473(b), the Court must order the offending attorney to pay reasonable compensatory attorney's fees and costs to the opposing party. Because relief is granted in this case based on an affidavit of attorney fault, Plaintiffs' counsel must reimburse these amounts.

Defendants submit the declaration of counsel Kevin J. Gillispie seeking \$2,544 in compensatory attorney's fees under CCP section 473(b) (9.6 hours at \$265/hour). Defendants' counsel identifies time spent preparing for and appearing at hearings at which Plaintiffs' counsel failed to appear (8/30/24 (1.1 hrs.), 10/24/24 (.9 hrs), 6/23/25 (1.6 hrs.), 7/23/25 (1.6 hrs.)), meet and confer communications following the dismissal (.7 hrs.), and preparing the opposition and appearing at the hearing on this motion (1/22/26 (2.3 hrs). (See Gillispie Decl. ¶¶ 5–10.)

Plaintiffs' counsel argues Defendants' fees are not "compensatory" because case management conferences would have occurred regardless, and because Defendants could have avoided motion practice by stipulating to relief. The Court disagrees. Although some default set aside cases reduce or deny fees incurred opposing relief where a stipulation could have avoided unnecessary motion practice, that rationale does not apply because the dismissal was entered by Court order, and could not have been vacated by stipulation of the parties. Because defense counsel was required to prepare for and attend the noticed CMC and OSC hearings, and Plaintiffs' counsel's nonappearance rendered those appearances wasted and set in motion the dismissal that required this motion, the time is a reasonable compensatory expense caused by counsel's errors.

Nevertheless, the Court awards only reasonable compensatory fees incurred. The Court limits recovery for each missed hearing to a maximum of one hour and where counsel claims less than one hour for a hearing, the Court awards only the time actually claimed. The Court also awards the .7 hours of meet and confer time claimed. Finally, the Court awards a total of 3 hours for counsel's work opposing the 473 motion and attending the hearing. The total awarded time is 7.6 hours at \$265 per hour, for a compensatory fee award of \$2,014.00.

Disposition

The July 23, 2025 dismissal is set aside for the reasons stated in the January 22, 2026 order. Defendants request for attorney fees is granted in part. Plaintiffs' counsel is ordered to pay Defendants \$2,014.00 within 30 days of this order.

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
MOTION TO STRIKE PRAYER FROM 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is Defendants Nelson Pools, Inc. and Bryant Harris' Motion to Strike Prayer from Second Amended Complaint. Defendants move to strike the request for "statutory damages, including treble damages where allowed," from the Prayer.

For the following reasons, Defendants' Motion is **granted** as outlined below.

Factual and Procedural Background

In June 2020, Plaintiffs entered into a contract with Defendant Nelson Pools, Inc. for construction of a swimming pool, hot tub, and concrete decking at Plaintiffs' residential property. Plaintiffs allege numerous problems with the design and performance of the work by Defendants.

Plaintiffs filed their initial Complaint on December 2, 2022. That Complaint alleged eight causes of action: (1) slander of title; (2) breach of contract; (3) negligence; (4) unfair business practices (Bus. & Prof. Code § 17200 et seq.); (5) strict liability – design defect; (6) fraud in the inducement; (7) intentional infliction of emotional distress; and (8) negligent infliction of emotional distress.

A First Amended Complaint was filed on April 25, 2023, removing several causes of action. The operative Second Amended Complaint was filed on May 19, 2025. The SAC alleges four causes of action: (1) breach of contract; (2) negligence; (3) strict liability – design defect; and (4) fraud. Among other relief, the SAC requests and award of "statutory damages, including treble damages where allowed". (Prayer at B.)

Standard of Review

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. ("CCP") § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it